POPIA and Digital Privacy Module
Section 3: How Your Data Gets Misused

PART A: LEARNING CONTENT

Introduction

You now know what POPIA is and what rights it gives you. But knowing your rights is only useful if you can recognise when something is going wrong in the first place. This section focuses on helping you understand how personal data actually gets misused in practice, with examples that are relevant to your life as a South African student.

Data misuse does not always look obvious. Sometimes it happens because of carelessness. Sometimes it is deliberate. And sometimes you hand over your information without realising what you are agreeing to.

What Counts as Sensitive Personal Information?

POPIA makes a distinction between general personal information and what it calls special personal information. Special personal information carries a higher level of protection because misuse of it can cause serious harm. Special personal information includes:

- Religious or philosophical beliefs
- Race or ethnic origin
- Trade union membership
- Political persuasion
- Health or sex life
- Biometric information such as fingerprints and facial recognition data
- Criminal behaviour

As a student, you may not think much of this information, but consider how much of it lives on your phone, in your university records, or in the apps you use daily.

Common Ways Students Unknowingly Share Personal Data

Online forms and sign-ups

Every time you create an account on a website or app, you provide personal information. Many platforms ask for more than they actually need. Always ask yourself whether the information being requested is actually necessary for the service you are signing up for.

Social media

Your social media profiles contain a significant amount of personal information. Your full name, location, place of study, workplace, relationship status, and daily routine can all be pieced together from your posts and profile details. Cybercriminals use publicly available social media information to build profiles on potential victims before launching targeted attacks.

WhatsApp groups

This is particularly common among South African students. University society groups, class groups, and community groups on WhatsApp often share ID numbers, student numbers, bank account details, and proof of payment screenshots. Once that information is in a group chat, you have no control over who screenshots it or shares it further.

Accepting terms and conditions without reading them

Most people tap "I agree" without reading what they are agreeing to. Many app terms and conditions include clauses that allow the company to share your data with third parties, use your information for targeted advertising, or retain your data even after you delete your account.

Free public Wi-Fi

Using unsecured public Wi-Fi exposes your device and the data you transmit to potential interception. If you log into your banking app or university portal on unsecured Wi-Fi, your credentials could be captured by someone on the same network.

Phishing links

Phishing involves sending you a fake message or email that looks legitimate and tricks you into entering your personal details on a fake website. These are very common in South Africa and often impersonate banks, SASSA, or university portals.

What Do Data Breaches Look Like in Practice?

A data breach happens when personal information is accessed, disclosed, or lost without authorisation. Breaches can happen because of:

- A company employee accidentally sending an email with personal data to the wrong person
- A database being left unsecured and publicly accessible online
- A cyberattack where criminals steal stored data
- A lost or stolen laptop or phone that was not password protected
- An insider threat where an employee deliberately leaks or sells data

When a breach happens, the personal information involved can be used to open fraudulent bank accounts, apply for loans in your name, or impersonate you online.

Real South African Examples

The Experian Breach (2020)

In 2020, Experian suffered a breach in which the personal information of approximately 24 million South Africans and 793 000 businesses was exposed. The data included identity numbers, contact details, and employment information. A fraudster had posed as a legitimate client and requested the data. This showed that even large, trusted organisations are vulnerable.

The SASSA SMS Scam

Many South African grant recipients have received fraudulent SMS messages claiming to be from SASSA, asking them to update their banking details by clicking a link or calling a number. People who responded handed over their banking details to criminals who then emptied their accounts.

University Student Data Exposure

Several South African universities have experienced incidents where student data, including academic records and personal contact details, was either leaked or improperly handled. In some cases, student information was shared with third parties without proper consent processes being followed.

AI-Assisted Video Scenario Summary

Scenario: The WhatsApp Group Mistake

Sipho is a second-year student at a South African university. He joins a WhatsApp group for a student society and is asked to send his student number, ID number, and proof of registration to confirm his membership. He sends the documents without thinking twice because everyone else in the group is doing the same.

A few weeks later, Sipho receives a call from someone claiming to be from the university's financial aid office. The caller already knows his student number and full name and asks him to confirm his

banking details to process a bursary payment he was not expecting. Sipho, believing the caller is legitimate, provides his banking information. His account is emptied the next day.

What went wrong:

- Sipho shared sensitive documents in a group where he did not know all the members
- His personal information was used by a criminal to build a convincing impersonation
- He did not verify the caller's identity through official university channels

What Sipho should have done:

- Questioned why a student society needed his ID number and full registration documents
- Never shared sensitive documents in a group chat
- Ended the suspicious call and contacted the financial aid office directly using the official university website

PART B: KNOWLEDGE CHECK QUIZ

Question 1

Zanele is in a university WhatsApp group where students are asked to share their ID numbers and proof of registration to join a campus society. What is the main risk in this situation?

A) WhatsApp does not support document sharing

B) The university society does not have the right to collect this information

C) Zanele's phone will be hacked immediately

D) The documents will be deleted automatically

Question 2

Which of the following best describes a phishing attack?

A) A criminal physically stealing your phone to access your personal information

B) A company legally collecting your data through their app without informing you

C) A fake message or website designed to trick you into providing your personal details

D) A data breach caused by a company employee losing a laptop

Question 3

In the Experian data breach of 2020, how did the criminal obtain the personal data of millions of South Africans?

A) By hacking into Experian's computer systems overnight

B) By posing as a legitimate client and requesting the data

C) By stealing physical files from Experian's offices

D) By intercepting data sent over public Wi-Fi networks